

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

18. AVERELLE ROBBINS V. KEVIN MEDEIROS

26FL0412

Petitioner filed a Request for Order (RFO) on May 4, 2026, seeking child custody and parenting plan orders, as well as child support orders. Petitioner did not concurrently file an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on June 4, 2026, and a review hearing on July 16, 2026. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Nevertheless, both parties appeared at CCRC and reached a full agreement. The parties submitted a stipulation which the court adopted as its order regarding custody and the parenting plan on June 8, 2026, and again on June 23, 2026. The court deems the custody and parenting plan portion of the RFO to be moot.

Respondent filed a Responsive Declaration and Income and Expense Declaration on May 8, 2026. Both were served on Petitioner on May 8th.

As to the request for child support, “[f]or all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Petitioner has failed to do so in the present matter, therefore, the court drops the matter from calendar due to Petitioner’s failure to file and serve the necessary documents.

All prior orders remain in full force and effect.

TENTATIVE RULING #18: THE COURT FINDS THE CUSTODY AND PARENTING PLAN PORTION OF THE RFO TO BE MOOT. THE COURT DROPS THE REQUEST FOR CHILD SUPPORT FROM CALENDAR DUE TO PETITIONER’S FAILURE TO FILE AND SERVE THE NECESSARY DOCUMENT. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 16, 2026

8:30 a.m./1:30 p.m.

**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**